

23SSTCV02342 23SSTCV02342

County: los-angeles

Division: Civil Law and Motion

Department: 731

Hearing date: 2026-06-30

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Case Number: 23SSTCV02342 Hearing Date: June 30, 2026 Dept: 731

SUPERIOR COURT OF CALIFORNIA

COUNTY OF LOS ANGELES

DEPARTMENT 731

TENTATIVE RULING

GEORGE

ANDRAOS

Plaintiff,

v.

LIFETIME HOME

BUILDERS, INC., et al.,

Defendants.

Case No:

23STCV02342

Hearing Date: June 30, 2026

Calendar Number: 2

Defendant

Lifetime Builders, Inc. moves to compel Plaintiff George Andraos' responses to Form Interrogatories, Special Interrogatories, Requests for Production of Document, and to Deem Requests for Admissions Admitted.

Defendant's

motions are DENIED as moot on the condition the responses are provided before the hearing on this motion. In the event that Plaintiff has not provided responses before the hearing, Defendant shall inform the Court and the motions will be granted.

Defendant's

request for sanctions is GRANTED. Plaintiff is ordered to pay Defendant sanctions in the amount of \$2,580 within 20 days of this order.

Background

This is an

action for breach of the contract.

On February 2, 2023, Plaintiff George Andraos ("Plaintiff") filed a complaint against Defendants Lifetime Home Builders, Inc., Altisource Solutions, Inc., dba Granite Risk Management, alleging causes of action for breach of contract, intentional misrepresentation and negligence.

Plaintiff alleges that commencing in or

about August 2, 2019, Plaintiff and Defendant entered into a written agreement for Defendants to provide certain home improvement services to Plaintiff's residence. Defendants performed most of these services below industry and trade standards and not in a workmanlike quality.

On

May 13, 2026, Defendant Lifetime Builders, Inc. ("Defendant") filed these motions to compel Plaintiff's responses to Form Interrogatories, Special Interrogatories, and Request for Production of Documents.

On

May 14, 2026, Defendant filed this motion to Deem Requests for Admissions Admitted.

On

June 11, 2026, Plaintiff filed an Opposition.

On

June 18, 2026, Defendant filed a Reply.

Legal Standard

Compel Interrogatories

If a party to whom interrogatories are directed fails to serve a timely response, the propounding party may move for an order compelling responses and for a monetary sanction.

(Code Civ. Proc., § 2030.290, subd. (b).) The statute contains no time limit for a motion to compel where no responses have been served. All that need be shown in the moving papers is that a set of interrogatories was properly served on the opposing party, that the time to respond has expired, and that no response of any kind has been served. (Leach v. Superior Court (1980) 111 Cal.App.3d 902, 905–906.)

Deem

RFAs Admitted

“If a party to whom requests for admission are directed fails to serve a timely response, the following rules apply: The requesting party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted.... (Code Civ. Proc. § 2033.280(b).) The Court, on motion, may relieve that party from this waiver on its determination that both of the following conditions are satisfied: (1) The party has subsequently served a response that is in substantial compliance with Sections 2033.210, 2033.220, and 2033.230. (2) the party's failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect.... (Code Civ. Proc. § 2033.280(a).) The court shall make this order, unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220. (Code Civ. Proc. § 2033.280(c).)

Compel RPDs

Where there has been no

timely response to a demand for the production of documents, the demanding party may seek

an order compelling a response. (Code Civ. Proc. § 2031.300(b).)

Failure to timely respond waives all objections, including privilege and work product. (Code Civ. Proc. § 2031.300(a).) Thus, unless the party to whom the demand was directed obtains relief from waiver, he or she cannot raise objections to the documents demanded. There is no deadline for a motion to compel responses. Likewise, for failure to respond, the moving party need not attempt to resolve the matter outside court before filing the motion.

Sanctions

Sanctions are mandatory in connection with a motion to deem matters specified in a request for admissions as true. Sanctions are also mandatory in connection with motions to compel responses to interrogatories and requests for production of documents against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel unless the court “finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc. §§ 2030.290(c), 2031.300(c), 2033.280(c).)

Discussion

On February 11, 2026, Defendant served Form Interrogatories, Special Interrogatories, Request for Productions, and Request for Admissions, Sets One, on Plaintiff. (Weinberg Decl., Exh. 1.) Responses were due by March 16, 2026. (Id.) Despite several extensions, Plaintiff has failed to provide responses.

In opposition, Plaintiff argues that responses will be provided before the hearing.

As such, the motions are denied as moot on the condition that Plaintiff provides the responses before the hearing on this motion. In the event that Plaintiff fails to provide responses prior to the hearing, Defendant shall inform the Court, and the motions will be granted.

Defendant seeks sanctions against Plaintiff. While Plaintiff asks that the Court deny the request for sanctions, Plaintiff fails to provide any justification for the failure to provide timely responses. Further, sanctions in connection with a motion to deem requests for

admissions are mandatory with no exception. As such, Defendant's request for sanctions is granted.

Defendant seeks sanctions in the amount of \$3,284.75 for the motion to compel responses to form interrogatories, \$584.75 for the motion to compel responses to special interrogatories, \$1,284.75 for the motion to compel responses to request for production, and \$1,284.75 for the motion to deem requests for admissions admitted.

Defendant's request for sanctions is reduced due to the simplicity of the motions and the nature of the concurrent facts. Thus, Plaintiff is ordered to pay Defendant sanctions in the amount of \$2,580 (\$400 per hour for 6 hours, plus \$180 filing fees), within 20 days of this order.